

ORIGINAL

FILED

JUN 29 2018

Federal Maritime Commission
Office of the Secretary

FEDERAL MARTIME COMMISSION

HANGZHOU QIANWANG DRESS CO., LTD.

Plaintiff,

- against -

RDD FREIGHT INTERNATIONAL INC.

Defendant.

Docket No. 17-02

PLAINTIFF'S BRIEF

VIOLATIONS

1. Defendant, in releasing the goods to the consignee before it had received the original Bills of Lading and permission from Plaintiff to release, violated the Shipping Act and its implementing regulations, in particular, 46 U.S.C. 41102(C), in that it "fail[ed] to establish, observe and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property."

DAMAGES

2. As a direct consequence of Respondent's violation, Defendant has sustained, and continues to sustain, injuries and damages in the original amount of \$134,207.70. After settlement received in China, the new amended amount is \$72,503.70.

MOTION FOR SUMMARY JUDGEMENT

3. Plaintiff requests that the FMC order Defendant:
- a. to cease and desist from violation of the Shipping Act;
 - b. to put in place lawful and reasonable practices;
 - c. to pay Plaintiff reparations for the unlawful conduct in the sum of \$72,503.70, with interest and attorney's fees and any other sum the Commission determines to be proper.

COMPUTATIONS

4. The original amounts of the three invoices:

\$57,273.48

\$54,137.40

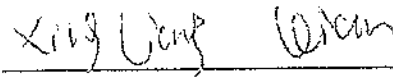
\$22,796.82

\$134,207.70 Total

Less amount paid to close the lawsuit in China \$61,704.00

Revised amount we are seeking judgement on **\$72,503.70**

Sincerely,



Xingliang Qian

HANGZHOU QIANWANG DRESS CO., LTD.

CERTIFICATE OF SERVICE

I hereby certify that on June 29, 2018, I served a true and correct copy of the following documents: (1) PROPOSED FINDINGS OF FACT, (2) PLAINTIFF'S BRIEF, AND (3) PLAINTIFF'S APPENDIX by mailing it on June 29, 2018 in a sealed envelope, with postage prepaid thereon, in an official depository of the U.S. Postal Service within the State of New York, to be delivered by Certified Mail to:

1. Ren Rong Pan
11 East Broadway Suite 4B
New York, NY 10038
2. Federal Maritime Commission
Secretary
800 North Capital St, NW
Washington, DC 20573-0001
3. RDD Freight International Inc.
168-01 Rockaway Blvd
Jamaica, NY 11434

I declare under penalty of perjury that the foregoing is true and correct.

Dated: New York, New York

June 29, 2018

Xingliang Qian

Xingliang Qian

HANGZHOU QIANWANG DRESS CO

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**PROPOSED FINDINGS
OF FACT**

STATEMENT OF UNDISPUTED MATERIAL FACTS IN SUPPORT OF PLAINTIFF
HANGZHOU QIANWANG DRESS CO., LTD

In accordance with FMC rules, Plaintiff HANGZHOU QIANWANG DRESS CO., LTD. submits this Proposed Findings of Fact:

FACTUAL ALLEGATIONS

1. Complainant manufactures apparel, including hats and gloves, and sells it to retailers in the United States.
2. Respondent is an NVOCC and international freight forwarder ("FF"), and is licensed by the FMC under the license number 014595.
3. Respondent maintains the following surety bonds pursuant to 46 C.F.R. 515.21:
 - a. NVOCC bond number 201620116, issued by American Alternative Insurance Corporation, effective from July 8, 2016 to present; and
 - b. FF bond number 2016020115, issued by American Alternative Insurance Corporation, effective from July 8, 2016 to present.
4. As an NVOCC, Respondent is responsible for arranging the transportation of cargo shipped to the United States, including the cargo's release to the consignee after proper formalities have been completed, i.e., after its receipt of the original bill of lading, and such release has been authorized by the shipper.
5. During or about May 2016, Complainant and Respondent entered into an agreement in which Respondent agreed to transport apparel (the "goods") from China to New York for Complainant.

6. In exchange for such transport, Complainant agreed to pay a fee to Respondent.
7. Complainant relates to three containers which were released to consignee without payment for goods; without presentation of the original Ocean Bill of Ladings; without consent of HANGZHOU QIANWANG DRESS CO., LTD: 1) a purchase of goods in August 2016 invoice and packing list number NO.SK04. The value of the merchandise included in the First shipment is \$57,273.48 (see Exhibit A page 2-3), and 2) a purchase of goods in August 2016, invoice and packing list number NO.SK05. The value of the merchandise included in the Second Shipment is \$54,137.40 (see Exhibit B page 6-7), and 3) a purchase of goods in February 2016, invoice and packing list number NO.SK06. The value of the merchandise included in the Third Shipment is \$22,796.82 (see Exhibit C page 10-11).
8. As part of the 2016 Transaction, RDD FREIGHT INTERNATIONAL INC. issued Bills of Ladings to HANGZHOU QIANWANG DRESS CO., LTD. Upon issuance of the original Ocean Bills of Ladings they entered into a contract with HANGZHOU QIANWANG DRESS CO., LTD. The three Ocean Bills of Ladings numbers are MBE16081082 (see Exhibit A page 4) MBE16081477 (see Exhibit B page 8), and MBE16091121 (see Exhibit C page 12).
9. S.W.A.K. Kids Inc. was the consignee designated on the Bills of Lading for the Shipments at Issue.
10. When the Shipments at Issue arrived in New York, Respondent promptly released the goods to the consignee, S.W.A.K. Kids Inc.
11. Respondent neither waited for receipt of the original Bills of Ladings, nor obtained Complainant's consent before releasing the goods from the Shipments at Issue to the consignee, as required by industry practice (see Exhibit D page 14-18).

12. In fact, Respondent released the goods before consignee S.W.A.K. Kids, Inc. tendered payment to Complainant for the relevant goods (see Exhibit D page 14-18).

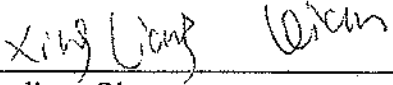
13. Complainant would not have released the goods to consignee before full payment had been received (see Exhibit page 14-18).

14. As of today, consignee still has not paid Complainant for the goods contained in the Shipments as Issue (see Exhibit D page 14-18).

15. RDD FREIGHT INTERNATIONAL INC. violated the terms of the contract which were to release the shipments to consignee upon presentation of the original Ocean Bills of Ladings and released the shipments to consignee without them (see Exhibit D page 14-18).

16. HANGZHOU QIANWANG DRESS CO., LTD. initiated a lawsuit in China against freight forwarder ZHEJIANG HANDSOME INTERNATIONAL LOGISTICS CO., LTD. to make a claim for our losses caused by RDD FREIGHT INTERNATIONAL INC. USA ZHEJIANG HANDSOME INTERNATIONAL LOGISTICS CO., LTD settled their claim with us for 50% of the losses. Attached (see Exhibit E page 21-22).

Sincerely,


Xingliang Qian
HANGZHOU QIANWANG DRESS CO.,LTD